Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1444
Claimant:	Cynthia Marks
Adjuster:	Alison Sweeney

2023-11-20
Claim opened after a report that the insured's vehicle was sideswiped while changing lanes on a multi-lane road. The claimant's attorney has notified our office that they will handle all further contact on the bodily injury portion.

2023-11-22
Reviewed the policy and confirmed the driver is listed as a named driver and that coverage was in force at the time of loss. No issues with the policy status were found.

2024-01-10
Obtained the police report, which places the claimant in the vehicle at the scene and records the lane change collision as descrbied by the other driver.

2024-02-05
Spoke with two independent witnesses who each saw the sideswipe occur and gave accounts consistent with the other driver's statement.

2024-02-26
Reviewed scene photographs and the damage estimate. The damage pattern along the passenger side matches the impact described by all parties, and no prior damage to the vehicle is on record.

2024-04-13
Claimant reported neck and upper back pain with stiffness, consistent with a whiplash-type injury for a collision of this kind. The attorney provided the initial medical records.

2024-04-23
Took a recorded statement from the claimant through counsel. The account of how the collision happened matched the account given in every earlier conversation, with no changes in the sequence of events.

2024-06-04
Medical file shows the claimant was treated for complaints in the same body area within the past two years. The attorney's office has been asked for those records to clarify how the prior condition interacts with the current complaints.

2024-06-16
Received the prior treatment records. The earlier condition is documented, and the physician notes that it may add to the current symptoms, so the current complaints are being evaluated with that in mind.

2024-06-19
Treatment followed a typical course of care and tapered as the claimant improved, with reduced visits and decreasing reports of pain over the following weeks.

2024-06-23
Reviewed the full file. The reported injury is plausible for a crash of this type, the liability facts are supported by independent sources, and the claim is proceeding to evaluation with the attorney on record.

Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Recorded Statement

Claim number:	C-1444
Statement of:	Cynthia Marks
Taken by:	Alison Sweeney
Date:	2023-11-25

Q: Good afternoon. This is the adjuster following up on the claim for the sideswipe collision. Is it all right if I record this statement?

A: Yes, that's fine.

Q: Please state where you were when the collision happened.

A: I was driving on the frontage road in Baytown, Texas, and I was trying to move over into the right lane to make my exit.

Q: Can you describe what you saw before you changed lanes?

A: I checked my mirror and it looked clear. I put on my signal and started to move over slowly. I didn't see the other car until it was already next to me.

Q: Where did the vehicles make contact?

A: Their passenger side scraped along my driver side, near the rear door. It was a long scrape, not a hard impact.

Q: Did you stop at the scene?

A: Yes, I pulled onto the shoulder right away and waited for the other driver to stop too. We exchanged information and a police officer came out.

Q: How are you feeling now?

A: My neck is stiff and sore, and the pain goes up into my head sometimes. I felt it the next morning, and it has been getting a little worse with the turning of my head.

Q: Have you seen a doctor or other provider for this?

A: Yes, I went to urgent care and I'm now seeing a physical therapist twice a week.

Q: Thank you. Is there anything you would like to add?

A: No, I think that covers it. I just want to get back to normal.

Q: Thank you for your time. We will follow up in writing.